

VP-12

Reply to Legal Notice

For VertexPay, Nisha Rao and Kavya Menon | 13 October 2025

Entity	VertexPay Technologies Private Limited
Status	Participant Case File
Benchmark note	Synthetic record. Names and identifiers are fictional; statutory and regulatory sources are real.

We represent VertexPay Technologies Private Limited, Ms Nisha Rao and Ms Kavya Menon. Meridian Growth Fund I responds separately but adopts the Company's factual position without waiving privilege.

Preliminary position

Your client seeks to convert documented compliance failures into a control dispute. The Company denies oppression, improper purpose, wrongful termination and any completed transfer of his shares. The call option notice preserves rights; it has not yet been consummated.

Responses

1. The 12 September meeting was valid under Article 18 with three directors including the Investor Nominee. Aarav was invited and chose not to attend. His conflict disentitled him from vetoing investigation of his own conduct. In the alternative, any procedural defect was cured by shareholder approval.
2. The EGM was duly called. Notice went to the address in the register of members; dispatch is sufficient. Aarav's lengthy and defamatory representations were summarised. He attempted to join only after voting concluded and was not excluded from substantive business.
3. The bridge was necessary to pay employees and protect customers. All shareholders could contact the Company to participate, and Nisha chose not to invest. The INR 18.00 price was supported by an independent valuation and severe customer risk.
4. The Company says the issue complied with sections 42 and 62(1)(c) and applicable rules, including approval of identified offerees and use of a registered valuer. It does not enclose the PAS-4 offer record, valuation report, complete private-placement register or PAS-3 acknowledgement requested in the notice.
5. Aarav directed split payments and misleading bank narrations to a firm controlled by his brother, without required approval. He also instructed staff to make an inaccurate statement concerning a payment-aggregator application and caused unsupported Nimbus revenue recognition.
6. The Board unanimously terminated for fraud and wilful misconduct. Without prejudice, the same facts justified termination without Cause. The Company denies salary of INR 8,740,000; payroll records show INR 2,100,000 gross plus disputed expenses.

7. The Company's statutory records will be provided to the extent required by law. Privileged forensic and legal material, customer-confidential data and personal data will not be produced merely on demand.

Forum and relief

Contractual claims are subject to clause 14 arbitration. The Company will seek reference or stay where legally available. It does not contend that an arbitrator can grant relief exclusively reserved to the NCLT. Interim preservation has been implemented. The demand to restore system access is rejected for security reasons.

Settlement proposal

Without admission, the Company offers an independent valuation and purchase of all Aarav shares, release of mutual claims, correction of the public narrative to 'leadership transition', and payment of undisputed employment dues. Offer open seven days and conditional on confidentiality.

Record inconsistencies

The reply calls the 1 October termination decision unanimous, although Rohan D'Souza's email reserved the fraud finding. It says the bridge price was INR 18.00 supported by a 10 September valuation; no valuation is enclosed. It also says all subscription money was received, while bank records show Riverstone remitted INR 17.1 million against INR 18 million allotted.